

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

WAY2GO CARGO CORP., *Complainant*

v.

OAK WAY CARGO, LLC, *Respondent*.

DOCKET NO. 25-14

Served: July 29, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

**ORDER REGARDING RESPONDENT’S MOTION OF JUNE 23, 2026, AND COMPLAINANT’S
MOTION OF JULY 22, 2026**

I. INTRODUCTION

On June 23, 2026, Respondent filed Respondent’s Motion to Compel Discovery, Compel the Continued Deposition of the Corporate Representative of Way 2 Go Cargo Corp., and Extend Case Deadlines (“MTC”). For the reasons discussed, the MTC is **DENIED**.

On July 22, 2026, Complainant filed Complainant’s Motion to Modify Scheduling Order Deadlines (“MTM”). For the reasons discussed, the MTM is **GRANTED**. The remaining case schedule is set forth below.

II. BACKGROUND

Complainant filed its Verified Complaint (“Complaint”) on July 25, 2025, which the Office of the Secretary served on July 29, 2025. (*See Complaint*). In general, Complainant alleges that Respondent violated 46 U.S.C. § 40901(a) by operating as an ocean transportation intermediary (“OTI”) without a license from the Commission. Complainant further alleges that Respondent harmed Complainant by acting as an unlicensed OTI because Respondent used Complainant’s business infrastructure, including Complainant’s OTI license, and diverted customers from Complainant. Complainant seeks reparations. (*See generally Complaint*).

Respondent filed its MTC on June 23, 2026. The crux of the MTC is that Complainant failed to produce documents, give Interrogatory Answers, and provide deposition testimony on the topic of reparations. (*See generally MTC*). Among other things, Respondent asserted that Complainant produced a corporate witness for a deposition on May 28, 2026, but she was not prepared to testify regarding amounts of reparations. (MTC, at 6-7). Respondent specifically requested an order compelling amended responses to requests for production (“RFP”) nos. 4, 5, and 8, and interrogatory nos. 1-3, 7-9, 11-12, and 20, as well as the opportunity for a supplemental deposition of Complainant’s corporate representative. (*See generally MTC*).

Complainant filed an opposition to the MTC on June 30, 2026 (“MTC Opp.”). In short, Complainant argued that the MTC was untimely. Moreover, Complainant argued that it was unable to provide the discovery sought by Respondent because of Respondent’s own failure to produce discovery timely. In any event, Respondent agreed to provide supplemental discovery materials by July 15, 2026. (*See generally* MTC Opp.).

On July 6, I held a status conference with counsel for the parties, and afterwards issued an Order Following Status Conference (the “July 6 Order”). In it, I held the MTC in abeyance, ordered Complainant to provide its supplemental discovery materials by July 15, 2026, and ordered the parties to file a motion regarding the remaining case schedule no later than July 22, 2026. I also raised the issue of whether, as a matter of law, reparations are available for a violation of Section 40901(a), and suggested that question should be answered before resolving the remaining discovery issues. (July 6 Order, at 2).

On July 22, 2026, Respondent filed Respondent’s Statement in Compliance with Order Following Status Conference (the “SIC”). The SIC attached a copy of Complainant’s supplemental interrogatory answers to interrogatory nos. 1-3, 7-9, 11-12, and 20 (“SA”), which Complainant served on July 15, 2026. (*See* SIC, Ex. A). Complainant argued that the SA improperly raised new objections. (SIC, at 4; *see also* SIC, Exs. A & B). Also, while the SA gave specific amounts of reparations sought for two categories of alleged damages, and asserted that these amounts were derived from Respondent’s data, the SA were nevertheless deficient as they did not provide how those amounts were calculated. (SIC, at 4-5; *see also* SIC, Ex. A). Respondent asked that I order a briefing schedule on the issue of reparations. Alternatively, Respondent asked that I permit Respondent to take a supplemental deposition of Complainant’s corporate representative to follow up on the information provided in the SA, including the objections Complainant raised in the SA. (*See* SIC, at 5).

As noted, the SIC includes a copy of the SA. It also includes a copy of the Complainant’s original interrogatory answers. (SIC, Exs. A & B). In general, Complainant’s original answers to interrogatory nos. 1-3, 7-9, 11-12, and 20 raised few objections (including objections in the introduction to the interrogatory answers), provided some information, but largely asserted that Complainant’s investigation is continuing and that Respondent has unduly delayed its production. (*See generally* SIC, Ex. B). In the SA, all Complainant’s supplemental interrogatory answers include objections, including “overly broad,” “vague,” and “not reasonably limited in time or subject matter,” and all clarify that the supplemental answer does not include damages sought in relation to state law claims. (*See generally* SIC, Ex. A).

Also on July 22, 2026, Complainant filed its MTM. In it, Complainant asserted that it answered Complainant’s outstanding discovery requests adequately. (MTM, at 3). Complainant also renewed its arguments that the MTC was untimely and that Respondent brought any delays upon itself. (MTM, at 1-2). Complainant asserts that it will not be relying on expert testimony to establish reparations. (MTM, at 3). Complainant proposed alternative schedules depending on whether I allow a supplemental deposition of Complainant’s corporate representative. Neither of Complainant’s proposed alternative schedules includes time for expert discovery. (MTM, at 4).

On July 27, 2026, Respondent filed Respondent’s Response to Complainant’s Motion to Modify Scheduling Order Deadlines (the “MTM Opp.”). Like the SIC, Respondent argued that I

should order that the availability of reparations be adjudicated before discovery on the topic is completed, and that I should allow Respondent to take a supplemental deposition of Complainant's corporate representative. (MTM Opp., at 1-7). Respondent also proposed case deadlines in the event I permit or deny a supplemental deposition; each proposal includes a schedule for expert discovery. (*See generally* MTM Opp., at 7-9).

III. LEGAL STANDARD

In Commission proceedings, generally, parties may obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense—including the existence, description, nature, custody, condition, and location of any documents or other tangible things and the identity and location of persons who know of any discoverable matter. (46 C.F.R. § 502.141(e)(1)). Relevant information need not be admissible at hearing if the discovery appears reasonably calculated to lead to the discovery of admissible evidence. (*Id.*). Discovery may be limited where it is unreasonably cumulative or duplicative, or where the burden or expense of the proposed discovery outweighs its likely benefit considering the needs of the proceeding, the amount in controversy, the parties' resources, the importance of the issues at stake in the action, and the importance of the discovery in resolving the issues. (46 C.F.R. § 502.141(e)(2)(A) and (C)). Motions to compel are governed by 46 C.F.R. § 502.150, which provides, in relevant part:

A party may file a motion pursuant to § 502.69 for an order compelling compliance with the requirement for initial disclosures provided in § 502.141 or with its discovery requests as provided in this subpart, if a deponent fails to answer a question asked at a deposition or by written questions; a corporation or other entity fails to make a designation of an individual who will testify on its behalf; a party fails to answer an interrogatory; or a party fails to respond that inspection will be permitted, or fails to permit inspection, as requested under § 502.146 of this subpart. For purposes of this section, a failure to make a disclosure, answer, or respond includes an evasive or incomplete disclosure, answer, or response.

(46 C.F.R. § 502.150(a)(1)). A motion to compel must include a copy of the evasive or incomplete response. (46 C.F.R. § 502.150(a)(2)(ii) & (iii)).

IV. DISCUSSION

The MTC is **DENIED**. Pursuant to my July 6 Order, Complainant provided supplemental discovery responses. As an initial matter, neither Respondent's SIC nor MTM Opposition argue that Complainant's responses to RFP Nos. 4, 5 and 8 are still deficient or require further supplementation. Therefore, any concerns regarding Complainant's responses to RFP Nos. 4, 5 and 8 now appear to be moot.

In the SIC, Respondent advances two reasons why the SA are deficient. First, Respondent argues that Complainant raises new objections. (SIC, at 4). Second, Respondent argues that the SA do not include calculations. (SIC, at 4-5). Respondent asks for a supplemental deposition of

Complainant's corporate representative in order to remedy these deficiencies. (SIC, at 4-5). Respondent also raises the possibility of expert discovery. (*See* MTM Opp., at 7-9).

I do not find Respondent's argument regarding the presence of objections in the SA to be a reason to permit further discovery. Complainant's supplemental answers are armed with a "boilerplate objection," such as "overly broad" or "vague." Such objections are waived when the interrogatory is answered. (*See, e.g., Liguria Foods, Inc. v. Griffith Laboratories, Inc.*, 320 F.R.D. 168, 187 (N.D. Iowa, Mar. 13, 2017) ("Indeed, the idea that such general or "boilerplate" objections preserve any objection is an 'urban legend.'")). To the extent each SA expressly states it is limited to providing damages sought in this matter, and not through a state court claim, this is not the forum to do discovery related to a state court matter. Therefore, the new objections are not a reason the SA are deficient.

I do not find Respondent's argument that the SA lack calculations to be a reason to permit further discovery. Complainant argues that the calculations are drawn from Respondent's own data, and do not rely on expert testimony. (MTM, at 3). I find Complainant's argument to be persuasive. Without expert testimony basing reparation calculations on projections or models or the like, Complainant's reparations will be based on evidence in the record, which, in turn, will be the subject of argumentation in the parties' briefs. Complainant's Opening Brief will set forth Complainant's arguments and calculations regarding reparations, and Respondent will have an opportunity to respond.

Respondent asks to take a supplement deposition of Complainant's corporate representative. Respondent's MTC has no deposition transcript, so I am unable to see for myself what was asked of Complainant's corporate representative and how she responded. That is reason alone to deny Respondent's request for a supplemental deposition. (46 C.F.R. § 502.150(a)(2)(ii) & (iii)). Assuming, however, that Respondent accurately describes how Complainant's corporate representative answered deposition questions – that is, testifying that Complainant's position regarding the amount of reparations was forthcoming – her testimony is consistent with Complainant's original interrogatory answers. (*See* SIC, at 6-7; *see also* SIC, Ex. B). I appreciate Respondent's concern, but I am satisfied that the SA is sufficient because it provides the amounts Complainant seeks and the basis for Complainant's position.

For these reasons, the MTC is **DENIED**.

Turning to the remaining case schedule, in light of the denial of the MTC, I find that there is no reason to decide whether reparations are available as a matter of law before briefing on the merits.

Both parties agree that briefing deadlines should be adjusted. Respondent's proposed deadlines include time for expert discovery. (*See* MTM Opp., at 7-9). As noted, however, Complainant does not rely on expert testimony for reparations, and accordingly, whether Complainant is able to demonstrate that it is entitled to damages will be argued in the briefs. Therefore, there is no need for expert discovery.

In its MTM, Complainant proposes two case deadlines. One contemplates me denying the MTC, the other contemplates me allowing a supplemental deposition of Complainant's corporate

representative. (MTM, at 4). Complainant proposes the following schedule in the event I deny the MTC:

Complainant's Brief, Proposed Findings of Fact and Appendix	August 28, 2026
Respondent's Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix	September 25, 2026
Complainant's Reply Brief, and Responses to Proposed Findings of Fact	October 16, 2026

I find these proposed deadlines in the MTM to be reasonable. It gives each party four full weeks for the Opening Brief, Response Brief, and accompanying materials. It also gives Complainant three weeks for a Reply Brief and accompanying materials. Accordingly, the MTM is **GRANTED**.

V. CONCLUSION

It is **ORDERED** that the MTC is **DENIED**. It is

FURTHER ORDERED that the MTM is **GRANTED**. It is

FURTHER ORDERED that the parties are to comply with the schedule set forth herein.

Richard C. Ambrow Jr -
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Richard Ambrow
Administrative Law Judge